

2026-09-06 — The Final **אַחוּת קִטְנָה**, **מנחה**, and the Chofetz Chaim's Primordial Oath

Content-based review · reviewer read the transcript, summary, and finished write-up · 6 September 2026 · 24 Elul 5786 · yahrzeit of the חפץ חיים

1. The Shiur in One Paragraph

This is week two of the machzor arc, and it is a much better-organized shiur than last week's placeholder. The Rav opens on the יומא דהילולא of the חפץ חיים and uses that as the peg for a chiddush deep inside **לְדוּד מְזֻמּוֹר**, but he starts from an unusual place — not מעריב of Rosh HaShanah, but the מנחה that *ends* תשפ"ו. The unifying frame is **הַכֹּל הוֹלֵךְ אַחֵר הַחֲתוּם**: how you close the old year is how the old year gets sealed. From there he moves through the Reb Yoel Gross / Skverer Rebbe מעשה about crying at **הַשְּׁנָה הַזֹּאת** in the final Mincha, then to the **אַחוּת קִטְנָה** transition-piyut ספרדי of Rav Avraham Chazan (a bar-plugta/contemporary of the Ramban), then to the Arizal's סגולה of **לְדוּד** and the Divine Name **חַת"ך** hidden in **תְּבִל וְיוֹשְׁבֵי בָהּ** and **פּוֹתַח אֶת יָדְךָ** in **תְּבִל וְיוֹשְׁבֵי בָהּ**. That sets up the Chofetz Chaim's chiddush: **וְלֹא נִשְׁבַּע לְמַרְמָה** is the pre-natal oath of **לֵב נָדָה לֹא תִהְיֶה צְדִיק וְאֵל תִּהְיֶה רָשָׁע**. He then pivots to three halachic sugyos in the **דָּגֵל** (with the **יוֹצֵר** and **יִשְׁתַּבַּח** between הפסק as **נוֹסַח** — **שִׁיר הַמַּעֲלֹת מִמַּעַמְקִים** from the Rambam's testimony about the old ספרד minhag of **מִרְבֵּבָה**), the **לְחִיּוֹם/לְחִיּוֹם** insertions and the **קִפְדָּא** (אז ישיר), and the origin of **רַבִּי עֲקִיבָא יִסְדּוּ** with the **תַּעֲנִית כ"ה** in **אֲבִינוּ מַלְכֵנוּ** gematria. Closes with the Arizal on dancing **שְׂמַחַת תּוֹרָה** as a סגולה for פרנסה.

2. What Was Strongest

- **Opening on the final מנחה instead of מעריב is a real move.** Every year of shiurim on the machzor open with the first קדיש of the **לֵיל ראש**

השנה. Starting with the *last* Mincha of the outgoing year, and building the whole opening around הַכֹּל הוֹלֵךְ אַחֲרֵי הַחֲתוּם, gives the mispallel something concrete to do at 6:47 pm Erev RH when he'd otherwise be checking his watch. This is the sort of frame-shift that changes behavior.

- **The Reb Yoel Gross / Skverer מעשה is perfectly-fit to the frame.** Two links of מסורה (Reb Yoel → the previous Skverer Rebbe), one striking detail (crying specifically at השָׁנָה הַזֹּאת), and a chiddush that generalizes (a tear at the last minute can pull the whole year up). That's a story doing structural work, not just חיזוק.
- **The Chofetz Chaim on ולא נשבע למרמה is the emotional and intellectual peak.** The pshat is *gorgeous*: the pasuk asks who ascends ה'הר, we all say "not me, I never swore falsely" — and the Chofetz Chaim reveals that everyone in the beis medrash swore, once, in utero, and the whole pasuk is *about* that oath. The full pull is that the Gemara in נדה itself brings the pasuk from לְדָוִד מִזְמוֹר as the one who upheld the oath — so the C.C. is drawing out what's already latent in Chazal. That's exactly the Chofetz Chaim's דרך.
- **The תבל ויושבי בה / ends פותח את ידך layer חת"ך done together** is a nice compact set-piece — two רמזים in different places converging on the same Name, tying לְדָוִד מִזְמוֹר to the daily אשרי the mispaller already knows. Makes the Arizal's סגולה feel less מקובלים-esoteric and more textual.
- **The דגל מרבבה defense via the Rambam is a beautiful lomdish move.** The Rav didn't just quote the נודע ביהודה — he brought the raiya. If the Rambam records אז ישיר as a legitimate old ספרד practice at the same מעבר, then the הפסקה-issur cannot be about additions per se, only about שיחה בטלה. That's a real גזירה שוה style, not a hand-wave.
- **The אבינו מלכנו חטאנו לפניך gematria on רבי עקיבא יסדו** is one of those רמזים that once you hear it you can't unhear. The Rav framed it well — sign their piyutim; רבי עקיבא signed his in גימטריא instead of

acrostic.

- **The לחיים vs. לחיים point** — small, technical, but exactly the kind of practical קפידא a shul Rav should be teaching in the days before Rosh HaShanah. Concrete, actionable, and the לא חיים's מקובלים concern gives it emotional weight.

3.What Was Weaker or Worth Pushing Back On

The Prague Haskalah play was a fun aside but wasn't doing the work the Rav thinks it was. The setup is that **יוצר גמסק** as severe as **עירור שבידו** that disqualify a soldier. The play then *mocks* that comparison. The Rav's punchline — "they didn't finish the play, the Chofetz Chaim and Reb Chaim won the war" — is charming but doesn't actually resolve the **הלכות ראש** story leaves in the air. Better to have simply cited the **מורא** where **מחנה** one shitah and **מחנה** שבידו actual fear-of-battle is a **מחלוקת תנאים** that would have contained the maskilic gotcha halachically instead of anecdotally.

The three **מסורות **לחיים** were listed but not weighed.** The Rav gave (1) **מסורת**, (2) **מסורת** Maharam's **מסורת** של הימים and (3) **מסורת** חיים **מסורת** qualified by **מסורת** חיים and then said "the strongest teretz is the third." But *why* is it strongest, and how do the other two interact with it? The first teretz is actually the most straightforward in Shulchan Aruch **מסורת** **מסורת** — the **מסורת** **מסורת** **מסורת** and it's not obvious the third is stronger halachically. A quick weighing of the three would have made the mispallel who forgot know *which* teretz to lean on when he can't restart.

The Vilna Gaon on **מסורת passed off casually as "did not say" — that overstates the **מסורת**** The Gra's position is nuanced (he held they altered **מסורת** **מסורת** and there are conflicting reports about whether he in fact refrained from saying them or said them **מסורת** **מסורת** Same overstatement crept into last week's shiur too. A "reportedly did not say them" would be more honest.

Q2. The **shat** that **לא נשבע למרמה** the pre-natal oath: does this displace the pshat of the **(רש"י, אב"ע, רד"ק)** **מבועת שוא** the daily-life sense, or is it a **מסורה** layered on top of the pshat? And is the **חפץ חיים** in his printed works or is this an oral **מסורה**

Q3. On **שיר המעלות** is the Rav paskening it for our shul, or is he presenting both sides descriptively? Given the shul's **מסקנה** what's the actual halacha I'ma'aseh for the mispallel this Rosh HaShanah?

Q4. On **לחיים** / **לחיים** a mispallel said **לחיים** shogeg, does he go back? The **מפידא** the **מקובלים** that **מסקטרגים** mishear as **לא חיים** is that a **דין** or a **משט** And if a Yid is **מקובל** קרי **לחיים** from daily **מקריב** is there a practical eitzah to avoid the tongue-slip on Rosh HaShanah?

Q5. On the **מקביא יסדו** gematria — which of the **מקביא** brings it? Is this an **מקבירם** **מקבירם** **מקבירם** a later collection? The rov **מקבירם** signed piyutim did so in acrostic; a gematria-signature is unusual enough to deserve a source.

Q6. On the Arizal's **מקבירם** **מקבירם** **מקבירם** — does the Rav hold this is a **מקבירם** the **מקבירם** (i.e. any Yid on any **מקבירם** **מקבירם** plug in), or is it specifically the Arizal-style **מקבירם** that pulls the **מקבירם** The distinction matters for the ba'al habayis who dances without knowing what the Arizal says.

6. Bottom Line

*This is a much tighter shiur than last week's opener. The Rav had time to prep, and it shows: seven distinct sugyos, each with a defined halachic/aggadic move, held together by a real thematic spine (opening/closing the year, the **מקבירם** of the day, and one deep chiddush from the yahrzeit-baal-shem). The **מקבירם** 's primordial-oath pshat is the takeaway and it earns its place — it's the kind of chiddush that reorganizes how a mispallel reads a whole **מקבירם** קאפיטל **מקבירם**. The Skverer story and the **מקבירם** raiya from the Rambam are the two other set-pieces that will stay with the oilam.*

Weaknesses are mostly of the "raised-and-dropped" kind — the three
on וצימ weren't weighed, the Bach's א was left
hanging, the Vilna Gaon was overstated, and the חזקת תורה coda
felt bolted on. Nothing that undermines the shiur; things a good chavrusa
would ask about after. As the second of three shiurim on the machzor,
this one lands — the Rav has moved from "orientation" (last week) to
"specific קי התפילה," and set up next week's promised deeper dive
into מן גרים and their ים

Produced by a content-based review pass — the reviewer was given the full transcript, summary, and the finished write-up, and asked to react to the shiur itself (not the write-up). Complement to the Independent Editorial Review.